Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1437
Claimant:	Ashley Ruiz
Adjuster:	Valerie Rodriguez

11/28/2024 - Claim opened for a side impact collision at an intersection. Insured vehicle was struck on the driver side by a third-party vehicle that entered on a red signal, per the insured's statement. Police report requested. Claimant reports shoulder injury and is represented by counsel; all contact to go through the attorney's office.

12/03/2024 - Received written notice of representation from claimant's attorney. Letter of protection requested for medical bills. Liability appears clear based on the initial scene statements and the traffic camera footage requested from the municipality. Reserve set for bodily injury and property damage.

12/06/2024 - Spoke with the claimant's attorney's office. Claimant has begun treatment with an orthopedic provider for a rotator cuff strain and is scheduled for an MRI. Requested itemized medical recodrs and prior treatment history for the rgiht and left shoulder. Attorney indicated a demand package will follow once treatment concludes.

12/15/2024 - Vehicle inspection completed at the body shop. Damage consistent with a T-bone impact to the driver door, B-pillar, and rear quarter panel. Estimate received and under review. Rental coverage confirmed for the claimant's vehicle while repairs are pending. Subrogation notice sent to the at-fault carrier.

12/20/2024 - Received the MRI report and additional treatment notes from the claimant's provider. Shoulder findings are being reviewed by the medical reviewer against the mechanism of injury. Attorney's office notified that the file remains open pending the demand package. Diary set for follow-up in thirty days.

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Recorded Statement

Claim number:	C-1437
Statement of:	Ashley Ruiz
Taken by:	Valerie Rodriguez
Date:	11/29/2024

Q: Thanks for taking the time to speak with me today. This recorded statement concerns the collision at the intersection in League City, Texas. Can you state your full name for the record?

A: Yes. Please use the placeholder name Claimant Driver.

Q: Thank you, Claimant Driver. Do you consent to this call being recorded?

A: Yes, I consent.

Q: Walk me through what happened at the intersection.

A: I was heading through the intersection on a green light. I had just passed the crosswalk when a vehicle coming from my right pulled out and hit the driver's side of my car.

Q: Did the other driver have a stop sign or signal?

A: They had a stop sign. I believe they rolled forward into the intersection without fluly stopping, but I'm not completely sure how far they had moved before impact.

Q: How fast were you traveling?

A: Probably around the posted limit, maybe a little under. I wasn't speeding.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: Did your airbags deploy?

A: The side airbag came out on my side. My head didn't hit anything, but my body was thrown against the door and my right arm and shoulder took most of the force.

Q: Did you seek medical attention?

A: Yes. I went to an urgent care clinic that same afternoon. They X-rayed the shoulder and told me to see an orthopedic specialist because of ongoing pain and limited range of motion.

Q: Have you had any prior injuries to that shoulder?

A: No, not that I can recall. It had never bothered me before this.

Q: Is there anything else you'd like to add?

A: Only that I'm still in physical therapy and I'm missing some work because of the pain. I'll provide the records.

Q: Thank you. That cnocludes the statement.